

		The motion however is not moot as to the issue of monetary sanctions. Section 2033.280(c) states, “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Here, Plaintiff requests \$1,885.00 in monetary sanctions against Defendant JOSE CORNEJO. The amount requested appears excessive in light of the circumstances. The court awards a total of \$1,185.00 (representing 2.5 hours at \$450/hour plus \$60 filing fee). Defendant Jose Cornejo to pay Plaintiff a total of \$1,185.00 within 60 days. Plaintiff to give notice.
14	Nesjan vs. AirBnB, Inc.	<u>Motion to Compel Arbitration</u> The court GRANTS Defendant AIRBNB, INC.’s unopposed motion to compel Plaintiff ADALYNN NESJAN to arbitrate her claims against Defendant, and to STAY this action. Plaintiff alleges she fell on the stairs at a property in Laguna Hills and that Defendants Airbnb, Inc. and Tatiana Taleb negligently owned, maintained, managed, or operated the premises. (ROA 2.) Defendant proffers evidence that Plaintiff agreed to Defendant’s Terms of Service before creating an Airbnb account and booking accommodation through Defendant. (Anderson Decl., ¶¶ 3-6; 15-24.) The Terms of Service Version 13 contain the following arbitration provision: 23.4 Agreement to Arbitrate. You and Airbnb mutually agree that any dispute, claim or controversy arising out of or relating to these Terms or the applicability, breach, termination, validity, enforcement or interpretation thereof, or any use of the Airbnb Platform, Host Services, or any Content (collectively, “Disputes”) will be